

Before You Walk Into a Property Protest

A plain language, cup-of-coffee-length guide for turning a property valuation protest into a clear, evidence-based request.

Prepared by Max Quattromani

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Reading time: 10 min (2,070 words)

IN THE HEARING ROOM

The pattern shows up quickly

Spend a day observing property protest hearings and a rhythm starts to appear. Homeowners come forward one after another. Most are sincere. Most have paid attention to their home. Most believe something about the assessment is wrong.

Then the Board asks the practical question that sits underneath almost every hearing: what can we verify?

That is where many protests lose their footing. The homeowner may be right that something feels off. But without photographs, measurements, repair estimates, record cards, or comparable properties, the Board has little it can act on.

THE DISCONNECT



HOMEOWNER THINKS

My value is too high.



BOARD NEEDS

What should change?



EVIDENCE-SUPPORTED REQUEST

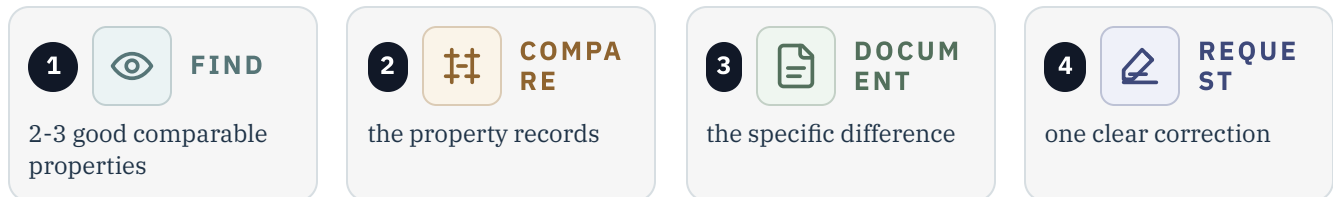
Here is the proof. Here is the correction.

Don't walk into a protest asking for justice. Walk in asking for the record to be corrected.

That is a narrower request. It is also a stronger one. A property protest is not mainly about proving that taxes are too high. It is about showing, with specific evidence, that the property record or assessed value should be corrected.

BEFORE YOU BEGIN

The whole process in four moves



Neb. Rev. Stat. § 77-1301; § 77-1502; § 77-1504; Title 350, Ch. 10, Real Property Regulations.

FINDING THE DISCONNECT

Why do sincere protests fail?

Usually not because the homeowner is careless. More often, the protest asks the Board to solve the wrong problem.

"Just look at my house" may be an honest reaction. So is "there is no way it is worth that." But a hearing cannot inspect a feeling. It needs something it can compare, measure, confirm, or correct.

SINCERITY IS NOT THE SAME THING AS USABLE EVIDENCE

Hard for the Board to act on

- My house isn't worth this much.
- This will make my taxes increase.
- Can someone make this make sense?

Easier for the Board to evaluate

- My record lists two fireplaces, but I have one.
- My finished basement area appears overstated.
- My condition rating appears inconsistent with comparable records.

This is where the homeowner's role changes. You do not need to become an appraiser. You need to become a good witness. Witnesses observe, document, and explain what their evidence shows.

Neb. Rev. Stat. § 77-1502; Title 350, Ch. 10, Protest Procedures; Neb. Rev. Stat. § 77-201 actual-value framework.

NARROWING THE QUESTION

What is the Board actually deciding?

The Board is not there to decide whether a tax bill feels heavy. It is not there to debate public budgets. It is not there to punish or defend the assessor.

BOARD REVIEW

The Board's Practical Question



NOTE

This is a cognitive aid, not a guarantee of outcome. The Board still controls the decision under the applicable process.

Those two questions keep the hearing focused on facts that can be checked instead of opinions that cannot be resolved. A good witness does not say, "This is unfair." A good witness says, "My property record shows two fireplaces. My home has one."

Neb. Const. art. VIII, § 1; Neb. Rev. Stat. § 77-1501; § 77-1502; § 77-1504.

FINDING GOOD COMPARABLES

What makes a comparable useful?

A comparable property is not just a nearby house with a lower value. The better question is whether that home would have genuinely competed with yours in the marketplace.

COMPARABLE PROPERTY SCORECARD

A good comp is similar in

- location
- style
- age
- size
- condition
- quality
- lot size
- major features

Weak comp signals

- very different size
- different property type
- major improvements yours does not have
- different market area
- unusual sale conditions, if known

Three strong comparables are usually more persuasive than fifteen weak ones. A short set of good matches lets the Board see the pattern. A long set of loose matches often makes the real point harder to find.

Use the sales map or sales search to find candidates (link below). Then slow down. Pull the property record cards. The sale price may get your attention, but the record facts tell you whether the comparison belongs in the packet.

Neb. Rev. Stat. § 77-112; IAAO Course 101, Sales Comparison Approach.

VERIFYING THE RECORD

How does the record shape today's value?

Today's assessed value reflects the information currently available about your property.



THE CURRENT ASSESSMENT IS BUILT FROM MANY SMALLER PIECES OF INFORMATION.

Living area

Quality

Condition

Lot size

Garage

Basement

Fireplaces

Outbuildings

Comparable sales

Land characteristics

The property record is often the most useful place to begin because it holds many of the facts used during valuation. Compare your record with the records for your comparables. Do not stop at the total assessed value. Ask which record facts help explain how each value was assembled.

Maybe your home and a comparable are similar, but your record shows more finished basement. Maybe the comparable has a larger garage. Maybe your condition rating is higher even though the homes appear similar. Those differences do not automatically change the value, but they give the Board specific questions it can review.



A SIMPLIFIED RECORD CARD: WHERE TO LOOK FIRST

Living area

Compare this

Condition

Compare this

Quality

Compare this

Basement finish

Check this

Garage

Measure if wrong

Fireplaces

Photograph if wrong

Outbuildings

Photograph if missing

Land size

Match this to the request



But be careful: the Board cannot fix one error by making another. If a comparable looks like a good match but its record is wrong, the answer may not be to change your value to match that mistake. The better question may be: which record is incorrect, and what evidence shows the correction?

Title 350, Ch. 10, Property Record File / Property Record Card provisions; Neb. Rev. Stat. § 77-1303; § 77-1311.

CONNECTING PROOF TO RELIEF

How do you turn evidence into one correction?

Keep the path short. What you noticed should connect directly to what the record says and what you are asking to correct.



EVIDENCE TO RECORD ISSUE TO REQUESTED CORRECTION

WHAT YOU NOTICED

Photos show sealed fireplace

WHAT THE RECORD SAYS

record lists functional fireplace

WHAT TO ASK FOR

request fireplace correction

WHAT YOU NOTICED

Measurements show smaller living area

WHAT THE RECORD SAYS

record shows larger square footage

WHAT TO ASK FOR

request square footage review

WHAT YOU NOTICED

Comparable records show similar homes rated Average

WHAT THE RECORD SAYS

subject is rated Good

WHAT TO ASK FOR

request condition adjustment

WHAT YOU NOTICED

Basement is only partly finished

WHAT THE RECORD SAYS

record lists full finish

WHAT TO ASK FOR

request basement finish correction

WHAT YOU NOTICED

Old shed was removed

WHAT THE RECORD SAYS

record still lists outbuilding

WHAT TO ASK FOR

request outbuilding removal

WHAT YOU NOTICED

Photos show a different major feature

WHAT THE RECORD SAYS

record describes the wrong feature, size, or type

WHAT TO ASK FOR

request physical-characteristic correction

The important part is the connection. A photo by itself is helpful. A record card by itself is helpful. Together, they become evidence of a specific correction.

Neb. Rev. Stat. § 77-1502; Title 350, Ch. 10, Protest Procedures.

BUILDING THE PACKET

What should the packet say?

You do not need a complicated argument. You need a clean sequence the Board can follow.

WHAT APPEARS INCORRECT?

Name the record fact or value issue as plainly as possible.

WHAT EVIDENCE SUPPORTS THAT?

Attach the photo, measurement, estimate, record card, sale record, or comparable record that helps verify it.

WHAT CORRECTION ARE YOU REQUESTING?

Ask for the specific record or value adjustment you want the Board to consider.

A clear protest is not louder. It is easier to verify.

Title 350, Ch. 10, Protest Procedures; IAAO appraisal guidance.

SPEAKING TO THE BOARD

How do you say it out loud?

You do not need to sound formal. Plain speech usually works better. You are simply walking the Board from the record to the evidence to the request.



WHAT TO SAY AT THE HEARING

The property record shows _____.

My evidence shows _____.

The comparable records show _____.

I am requesting _____.

That gives the Board something to work with. They may ask follow-up questions, and it does not guarantee an outcome, but it puts the record, the evidence, and the request in the same place. It also keeps you from drifting into frustration when the strongest thing you can offer is a specific fact the Board can evaluate.

GATHERING YOUR MATERIALS

Here are the typical tools for checking the record, finding comparable sales, and filing the official protest form.



Gage County GIS / Property Record Lookup

Find the property record card for your parcel and for any comparable properties you plan to discuss.



Gage County Sales Comparison Map

Start here when looking for recent sales that may have competed with your property in the market.



Nebraska Property Valuation Protest Form 422

Use the official Nebraska form and confirm the deadline, signature, and filing requirements with the county.



GAGE COUNTY GIS / PROPERTY RECORD LOOKUP

<https://report.gworks.com/report.ashx?county=gage&type=assessor>



GAGE COUNTY SALES COMPARISON MAP

<https://experience.arcgis.com/experience/67492767fb8d49a8b321d14022d24e81>



NEBRASKA PROPERTY VALUATION PROTEST FORM 422

https://revenue.nebraska.gov/sites/default/files/doc/pad/forms/422_Property_Valuation_Protest.pdf



Guidance note: This guide is general educational guidance. It is not an appraisal and not a guarantee of any outcome. Local deadlines, filing rules, hearing procedures, and Board decisions still control.

AFTER THE HEARING

If the first packet was not enough

If your initial submission did not include enough evidence to support the adjustment you requested, that does not necessarily mean the conversation is over.

For a regular real property valuation protest, June 30 is the statutory filing cutoff. The official Nebraska Form 422 instructions say the protest must be filed after the assessment roll is complete and on or before June 30. A later hearing date does not create a new filing window for a first protest.

The Board of Equalization can only act on the information in front of it. If you already filed by the applicable deadline and later gather stronger comparable properties, obtain additional documentation, or discover something in your property record that supports a specific correction, ask the County Clerk's Office whether those materials can still be submitted for the existing protest.



The next scheduled property protest hearings of the Gage County Board of Equalization are:

Gage County Courthouse, 612 Grant Street, Beatrice, NE 68310

Monday, July 6, 2026

1:00 p.m.

[assets/calendar/gage-boe-2026-07-06.ics](#)

Wednesday, July 8, 2026

1:00 p.m.

[assets/calendar/gage-boe-2026-07-08.ics](#)

Monday, July 20, 2026

1:00 p.m.

[assets/calendar/gage-boe-2026-07-20.ics](#)

Wednesday, July 22, 2026

1:00 p.m.

[assets/calendar/gage-boe-2026-07-22.ics](#)

These dates are hearing sessions, not filing deadlines.

Sometimes the most productive outcome from an early hearing is not an immediate adjustment. It is learning exactly what evidence the Board needs to evaluate your request.

Neb. Rev. Stat. § 77-1504; § 77-5013.

A protest can improve the record

A protest is not an attack on the assessment system. At its best, it is one of the final quality-control steps before the assessment roll becomes final.

The homeowner may be the only person in the room who has lived with the property closely enough to notice the small mistake: the old outbuilding, the wrong fireplace count, the basement finish that was never completed, the condition rating that no longer fits.

Better records produce better models. Better models produce more uniform assessments. More uniform assessments reduce the need for future protests.

Accuracy compounds.

Neb. Const. art. VIII, § 1; Title 350, Ch. 10, Real Property Regulations.

Sources

This guide is based on Nebraska property tax law, Nebraska Department of Revenue Property Assessment Division regulations, and generally accepted assessment guidance.

LEGAL AUTHORITY

Nebraska Constitution, Article VIII, § 1 — uniform and proportionate taxation.

Nebraska Revised Statutes, Chapter 77 — property valuation, assessment, equalization, protest, and appeal procedures.

Title 350, Nebraska Administrative Code, Chapter 10 — Property Assessment Division Real Property Regulations.

ASSESSMENT GUIDANCE

IAAO Course 101, Fundamentals of Real Property Appraisal — sales comparison, cost approach, depreciation, and appraisal process.

Nebraska Property Assessment Division Reports & Opinions — used only as assessment-practice context, not as controlling legal authority.

Can't get enough longform reading about property assessments? Extremely relatable.

Read the companion case study: [Assessment Up. Protest Denied. Taxes?](#)